

Notice from the National Commission for Data Protection regarding

Bill No. 8155 on intercultural coexistence and

amending the amended law of March 8, 2017 on Luxembourg nationality and regarding the draft Grand-Ducal regulation aimed at determining:

1° the modalities for the election of

communal representatives to the Superior Council for Intercultural Coexistence; 2° the organization and functioning

of the Superior Council for Intercultural Coexistence; 3° the amount of the compensation

per plenary session and working group due to the members and experts called to collaborate on the work of the Superior Council for Intercultural Coexistence.

Deliberation No. 51/AV29/2023 of June 30, 2023

1. In accordance with Article 57.1.e) of Regulation (EU) 2016/679 of April 27, 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (hereinafter referred to as the "GDPR"), to which Article 7 of the law of August 1, 2018 organizing the National Commission for Data Protection and the general regime on data protection refers, the National Commission for Data Protection (hereinafter referred to as the "National Commission" or the "CNPD") "advises, in accordance with the law of the Member State, the national parliament, the government, and other institutions and bodies regarding legislative and administrative measures relating to the protection of the rights and freedoms of natural persons with regard to processing."

Article 36.4 of the GDPR states that "[m]ember States consult the supervisory authority in the context of the preparation of a legislative proposal to be adopted by a national parliament, or a regulatory measure based on such legislative proposal, which relates to processing."

2. By email dated February 8, 2023, the Minister of Family and Integration invited the National Commission to express its opinion on Bill No. 8155 on intercultural coexistence and amending the amended law of March 8, 2017 on Luxembourg nationality (hereinafter referred to as the "bill") as well as on the draft Grand-Ducal regulation aimed at determining: 1° the modalities for the election of communal representatives to the Superior Council for the CNPD.

Notice from the National Commission for Data Protection regarding Bill No. 8155 on intercultural coexistence and amending the amended law of March 8, 2017 on Luxembourg nationality and the draft Grand-Ducal regulation aimed at determining: 1° the modalities for the election of communal representatives to the Superior Council for Intercultural Coexistence; 2° the organization and functioning of the Superior Council for Intercultural Coexistence; 3° the amount of the compensation per plenary session and working group due to the members and experts called to collaborate on the work of the Superior Council for Intercultural Coexistence.

1/7

3.

4.

5.

6.

intercultural living together; 2° the organization and functioning of the High Council for Intercultural Living Together; 3° the amount of the compensation per plenary session and working group allocated to the members and experts called to collaborate on the work of the High Council for Intercultural Living Together (hereinafter referred to as the "draft Grand-Ducal regulation").

According to the explanatory memorandum, the purpose of the draft law is to "establish the general framework, instruments, and structures that ensure harmonious intercultural living together among all persons residing and working in Luxembourg."¹ It aims to replace the concept of "integration" provided for by the amended law of December 16, 2008, concerning the integration of foreigners in the Grand Duchy of Luxembourg (hereinafter referred to as the "2008 law") with the concept of "intercultural living together" in order to better take into account the evolution of the migratory situation in the Grand Duchy of Luxembourg. Thus, it has a broader scope than the 2008 law, as the draft law extends the

instruments of living together to all persons residing or working in Luxembourg, including Luxembourgers, and no longer focuses solely on foreigners.

To this end, the draft law provides for (i) the instruments of intercultural living together, (ii) the creation of a High Council for Intercultural Living Together, (iii) the creation of municipal commissions for intercultural living together, and (iv) financial assistance.

The draft Grand-Ducal regulation relates, among other things, to the modalities of elections of municipal representatives to the High Council for Intercultural Living Together and provides in this context for the publication of candidate lists in its Article 3.2 and a list of voting members as well as a record of the electoral operations in its Article 4.3.

The present opinion will limit its observations to questions related to the protection of personal data of the individuals concerned raised by the texts under review.

1.

Ad Article 4 of the draft law

7. One of the instruments of intercultural living together is the Citizen Pact for Intercultural Living Together (hereinafter referred to as the "Citizen Pact"). According to the commentary on the articles, membership in this pact is "on a voluntary basis and cannot in any case be imposed."² It is also indicated that, to simplify membership in the pact and participation in the intercultural living together program (hereinafter referred to as the "program"), management is done through an electronic platform that will be available both on smartphones via an application and on an online platform.

1 Cf. Chapter IV of the explanatory memorandum of the draft law, 1st sentence.

2 Cf. Commentary on the articles, Ad Article 4.

CNPD

Opinion of the National Commission for Data Protection

regarding draft law No. 8155 on intercultural living together and amending the amended law of March 8, 2017, on Luxembourg nationality and the draft Grand-Ducal regulation aimed at determining: 1° the modalities of elections of municipal representatives to the High Council for Intercultural Living Together; 2° the organization and functioning of the High Council for Intercultural Living Together; 3° the amount of the compensation per plenary session and working group allocated to the members and experts called to collaborate on the work of the High Council for Intercultural Living Together
2/7

8. Article 4 of the draft law regulates the implementation of the citizen pact and provides, among other things, specific provisions regarding the protection of personal data, which is commendable. Nevertheless, certain points require clarification.

1. On the purposes of processing

9. According to Article 4.3 of the draft law, the application for membership in the citizen pact is submitted via an electronic platform "which aims for access to and management of the program." Unlike the Council of State, the National Commission recommends maintaining this provision in the draft law and not relegating it to the regulatory level. Indeed, the processing carried out via the electronic platform affects the right to the protection of personal data, which is a matter reserved for formal law. It is therefore preferable to include the important elements of processing, such as the purposes, in the draft law.

2. On the categories of personal data

10. Article 4.4 of the draft law enumerates the categories of data processed in the context of an application for membership in the citizen pact and states that the "application must include at least:

1° the name and surname of the applicant;

2° their place of residence;

3° if they are not a resident in Luxembourg, their place of work;

4° their national identification number;

5° their contact details."

11. It is commendable that the authors of the draft law have listed the categories of data processed within the electronic platform in the context of an application for membership. However, the CNPD

notes that by adding the terms "at least" at the beginning of the list of categories of processed data, the authors imply that other data could also be processed in the context of the said application, as also raised by the Council of State in its opinion of June 6, 2023. It aligns with the observations of the Council of State on this matter and believes that the provision should be clarified.

CNPD

Opinion of the National Commission for Data Protection

regarding draft law n° 8155 on intercultural coexistence and amending the amended law of March 8, 2017, on Luxembourg nationality and the draft grand-ducal regulation aimed at determining: 1° the modalities for the election of municipal representatives to the higher council of intercultural coexistence; 2° the organization and functioning of the higher council of intercultural coexistence; 3° the amount of the allowance per plenary session and working group for members and experts called to collaborate on the work of the higher council of intercultural coexistence.

3/7

****Under review should indicate exhaustively the categories of data to be included in the application for membership in the citizen pact.****

12. For the personal data explicitly mentioned in the text of Article 4.4, these appear to be limited to what is necessary in light of the purposes for which they are processed, in accordance with the principle of data minimization.

****3. On access to the RNPP****

13. Article 4.5 states that "[f]or the verification of applications and the calculation of the annual grant provided for in Article 6, paragraph 16, point 2°, the minister has access to the National Register of Natural Persons." The Council of State believes that this provision is superfluous, insofar as this access would be self-evident in the context of the material execution of the proposed law.

14. The National Commission can accommodate the deletion of this paragraph to the extent that the modalities for accessing the National Register of Natural Persons are defined by the amended law of June 19, 2013, relating to the identification of natural persons, as well as by the Grand-Ducal Regulation of November 28, 2013, setting the modalities for the application of the law of June 19, 2013, relating to the identification of natural persons.

****4. On the data controller****

15. The concept of data controller plays an important role in the application of the GDPR as it determines who is responsible for the various rules regarding data protection and how the data subjects can exercise their rights.

16. Thus, the National Commission congratulates the authors of the draft law for specifying in Article 4.6 of the draft law that the minister responsible for Integration (hereinafter referred to as the "minister") is the data controller for personal data within the framework of the citizen pact.

17. Article 4.6 continues that the minister "may delegate, under his responsibility, all or part of the obligations incumbent upon him under the processing of personal data." The CNPD questions the meaning to be given to this provision. In terms of data protection,

6 Article 5.1.e) of the GDPR

7 Doc. pari. n° 8155/01, ad article 4, p. 3.

8 Cf. in this sense: European Data Protection Board (EDPB), Guidelines 07/2020 on the concepts of controller and processor in the GDPR, p. 3., available at: https://edpb.europa.eu/our-work-tools/our-documents/guidelines/guidelines-072020-concepts-controller-and-processor-adpr_fr

****CNPD****

****Opinion of the National Commission for Data Protection****

****Regarding draft law n° 8155 on intercultural living together and amending the amended law of March 8, 2017, on Luxembourg nationality and the draft Grand-Ducal Regulation aimed at determining: 1° the modalities for the election of municipal representatives to the Higher Council for Intercultural Living**

Together; 2° the organization and functioning of the Higher Council for Intercultural Living Together; 3° the amount of the allowance per plenary session and working group for members and experts called to collaborate on the work of the Higher Council for Intercultural Living Together.**

4/7

it is generally the organization as such, and not a person within it, that acts as the data controller within the meaning of the GDPR. By designating the minister as the data controller, the CNPD understands that the authors of the bill do not aim at the minister personally but at the administrative authority that the minister represents. Even if, in practice, a particular individual within the ministry is designated to ensure compliance with data protection rules, this person will not be the data controller but will act on behalf of the organization.

5. Regarding the retention period

18. According to Article 5.1(e) of the GDPR, personal data must not be kept longer than necessary for the purposes for which they are collected and processed. Beyond that, the data must be deleted or anonymized.

19. Article 4.9 of the draft law specifies that personal data is retained for three years following the end of the citizen pact, and paragraph 8 of the same article mentions, in this regard, that the citizen pact ends after a period of inactivity of the member for two years. As already raised by the Council of State in its opinion of June 6, 2023, the commentary on the article and the draft law remain silent regarding the reasons that led the authors of the draft law to set the retention period for the concerned data at three years. For this reason, the CNPD is unable to assess whether, in this case, the principle of data retention limitation is respected.

II.

Regarding Article 6 of the draft law

20. Article 6 of the draft law pertains to the communal pact for intercultural coexistence (hereinafter the "communal pact") which is signed between the minister and the municipalities. It follows from paragraph 12 that the municipalities submit requests for membership in the communal pact via an electronic platform. It is further specified that the electronic platform is established and managed under the authority of the minister, so the National Commission concludes that the minister is to be considered as the data controller within the meaning of Article 4.7 of the GDPR.

Paragraph 12 also indicates that this electronic platform "is intended for access to and management of the communal pact." Unlike the Council of State, the National Commission...

CNPD

Opinion of the National Commission for Data Protection

regarding draft law No. 8155 on intercultural coexistence and amending the modified law of March 8, 2017, on Luxembourg nationality and the draft Grand-Ducal regulation aimed at determining: 1° the modalities for the election of municipal representatives to the High Council of Intercultural Coexistence; 2° the organization and functioning of the High Council of Intercultural Coexistence; 3° the amount of the allowance per plenary session and working group for members and experts called to collaborate in the work of the High Council of Intercultural Coexistence.

5/7

Opinion of the National Commission for Data Protection

Regarding Bill No. 8155 on Intercultural Living Together and Amending the Amended Law of March 8, 2017 on Luxembourg Nationality and the Draft Grand-Ducal Regulation Aimed at Determining: 1° the Procedures for the Election of Municipal Representatives to the Higher Council of Intercultural Living Together; 2° the Organization and Functioning of the Higher Council of Intercultural Living Together; 3° the Amount of Compensation per Plenary Session and Working Group for Members and Experts Called to Collaborate on the Work of the Higher Council of Intercultural Living Together

**|. **

It is recommended to maintain paragraph 12 in the draft law and not to relegate it to the regulatory level. As stated in point 9 of this opinion, the right to the protection of personal data constitutes a matter reserved for formal law, so it is preferable to include the important elements of processing, such

as purposes, in the draft law.

****21.**** Paragraph 13 sets out the elements that the application for membership in the municipal pact must include, notably a list of the persons proposed to be members of the steering committee and, where applicable, the name of the municipal pact coordinator. Like the Council of State, the CNPD believes that the terms "at least" should be omitted and refers to its developments under point 11 of this opinion.

****22.**** It is also regrettable that the authors of the draft law do not provide explanations regarding the reasons why the application for membership must contain this personal data. Furthermore, it is unclear, in the eyes of the CNPD, what information should appear on the list of persons proposed to be members of the steering committee. Would it suffice to indicate the names of the persons? In this regard, it is important to recall the significance of the principle of data minimization, according to which personal data must be adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed.

****II.****

****Regarding Article 10.2 of the Draft Law****

****23.**** According to Article 10.2 of the draft law, "[m]unicipalities shall transmit to the minister the names and contact details of the members of the [municipal intercultural living together] commission." The authors explain in the commentary on the articles that this transmission would be necessary in view of the elections to the national council.

****24.**** The CNPD assumes that the authors are referring to the elections to the higher council of intercultural living together (hereinafter the "higher council") and recommends mentioning this purpose in the text of the draft law, and not only in the commentary of the article in question.

****III.****

****Regarding Article 3.2 of the Draft Grand-Ducal Regulation****

The draft grand-ducal regulation specifies the procedures for the election of municipal representatives to the higher council. Article 3.2 states that the "lists of candidates shall be published as soon as the deadline for the submission of candidacies has passed." The CNPD believes that this paragraph lacks precision regarding essential elements, such as the exact data intended to appear in said lists of candidates, where they will be published (on the Internet, in the municipality's premises, etc.), or the closely related question of the place of publication, namely who would have access to this data.

****25.**** The authors of the draft grand-ducal regulation should ensure that the principles of minimization and proportionality are respected, both concerning the data processed and the circle of recipients.

****IV.****

****Regarding Article 4.3 of the Draft Grand-Ducal Regulation****

****26.**** It follows from Article 4.3 of the draft grand-ducal regulation that, on the day of the election of municipal representatives to the higher council, "a list of voting members and a report of the electoral operations shall be drawn up by the president of the electoral office." The CNPD questions the necessity of drawing up a list of voting members and the content of the report of the electoral operations. It recommends that the authors of the draft grand-ducal regulation clarify the purpose of such a list of voting members, specify the exact data intended to appear therein, and also clarify the content and purpose of the report of the electoral operations.

Thus adopted in Belvaux on June 30, 2023.

The National Commission for Data Protection

Tine A. Larsen

President

Thierry Lallemand

Commissioner

Alain Herrmann

Commissioner